

JUDGMENT SHEET

PESHAWAR HIGH COURT
ABBOTTABAD BENCH
(Judicial Department)

W.P. No. 672-A/2026

Waheed Ahmed son of Saeed Ahmed.

(Petitioner/s)

VS

The state and others.

(Respondent/s)

Present: Mr. Waji-ur-Rehman Swati, Advocate for the petitioner.

Sardar Basharat, learned Additional Advocate General for the state.

Mr. Atif Ali Khan Jadoon, Advocate for the respondent.

Date of hearing: 19.05.2026

JUDGMENT

AURANGZEB, J.- Through the instant judgment, this Court shall decide the present petition as well as connected **WP No. 696-A/2026** titled **“Nadeem Zeb etc. vs. The State and others”** and **WP No. 870-A/2026** titled **“Rida Jadoon vs. The State and others,”** as common questions of law and facts are involved in all these petitions.

Shahid (D.B.)

Mr. Justice Syed Mudasser Ameer
Mr. Justice Aurangzeb

2. Brief facts of the case are that respondent No.2 lodged FIR No. 1265 dated 05.12.2025 under Sections 302, 364, 201, 202, 34 PPC and 7-ATA at Police Station Cantt Abbottabad, alleging that his daughter, namely Warda, had entrusted 67 tolas of gold ornaments to Rida Jadoon, wife of the present petitioner, before leaving for Dubai for employment. After returning from Dubai, Warda demanded return of the ornaments, but Rida allegedly avoided the same. On the day of occurrence, Warda met Rida at a hospital at about 12:00 midnight. Thereafter, Warda went missing and her mobile phone was found switched off. Upon inquiry, Rida stated that both of them had gone to Jadoon Plaza where she returned the ornaments to Warda in exchange for some cheques, after which they parted ways. As no clue regarding Warda's whereabouts could be found, the aforesaid FIR was registered against the petitioners. Upon completion of investigation, challan was submitted before the learned trial Court. During trial, the petitioner moved an application seeking deletion of Section 7-ATA and transfer of the case to an ordinary Court, which was dismissed vide impugned order

dated 13.04.2026. hence the instant petition as well as connected petitions.

3. Arguments heard and record perused.

4. Having heard the learned counsel for the parties, examined the record, the impugned order and the relevant provisions of law, the following question arises for determination by this Court:

“Whether the learned Anti-Terrorism Court, Hazara Division, Abbottabad possesses lawful jurisdiction under the Anti-Terrorism Act, 1997 to try the petitioners for the offence under section 365-A, P.P.C., notwithstanding the contention that the ingredients constituting ‘terrorism’ within the meaning of section 6 of the Anti-Terrorism Act, 1997 are not attracted to the facts of the case?”

5. Perusal of the record reveals that through the instant as well as connected petitions, the petitioners have called in question the legality of the impugned order dated 13-04-2026 passed by the learned Anti-Terrorism Court, Hazara Division, Abbottabad, whereby their application filed under section 23 of the Anti-Terrorism Act, 1997 seeking transfer of the case to a Court of ordinary jurisdiction was dismissed. The petitioners have mainly contended that although section 365-A, P.P.C. has been

incorporated in the case, yet the prosecution has failed to attribute any design, purpose or intent contemplated under section 6 of the Anti-Terrorism Act, 1997; therefore, the learned Anti-Terrorism Court lacks jurisdiction to proceed with the matter.

6. It is an admitted position borne out from the record that initially section 7(1)(a) of the Anti-Terrorism Act, 1997 was incorporated in the F.I.R.; however, subsequently charge under section 365-A, P.P.C. has been framed against the accused persons by the learned trial Court. It is equally undisputed that the offence under section 365-A, P.P.C. falls within Entry No. 4 of the Third Schedule appended to the Anti-Terrorism Act, 1997. In order to appreciate the controversy involved in the matter, it would be advantageous to reproduce the relevant statutory provisions.

Section 2(n) of the Anti-Terrorism Act, 1997 defines “scheduled offence” in the following terms:

“2(n). ‘scheduled offence’ means an offence specified in the Third Schedule.”

Entry No. 4 of the Third Schedule to the Anti-Terrorism Act, 1997 provides as under:

“Without prejudice to the generality of the above paragraphs, the Anti-Terrorism Court, to the exclusion of any other Court, shall try the offences relating to the following, namely:-

(i) Abduction or kidnapping for ransom.”

Likewise, section 12 of the Anti-Terrorism Act, 1997 confers jurisdiction upon the Anti-Terrorism Court in the following manner:

“12. Jurisdiction of Anti-Terrorism Court. (1) Notwithstanding anything contained in the Code or any other law, an Anti-Terrorism Court shall have exclusive jurisdiction to try all offences under this Act and all scheduled offences.”

Section 13 of the Act further elaborates the extent of such jurisdiction and provides:

“13. Powers of Anti-Terrorism Court with respect to other offences. (1) When trying any offence, an Anti-Terrorism Court may also try any other offence with which the accused may, under the Code, be charged at the same trial if the offence is connected with such other offence.

(2) If, in the course of any trial under this Act, the Anti-Terrorism Court is of the opinion that the offence is not triable by it, it shall transfer the case for trial to a Court having jurisdiction under the Code.”

Similarly, section 23 of the Anti-Terrorism Act, 1997 provides:

“23. Transfer of cases. Where, after taking cognizance of an offence, an Anti-Terrorism Court is of the opinion that the offence is not triable by it, it shall transfer the case to a Court having jurisdiction to try such offence.”

7. A bare reading of the above provisions unmistakably demonstrates that the Anti-Terrorism Court derives jurisdiction not only in respect of offences which strictly fall within the definition of “terrorism” under section 6 of the Act but also in respect of “scheduled offences” specifically incorporated in the Third Schedule to the Act. Thus, the jurisdiction of the Anti-Terrorism Court is not confined merely to offences punishable under section 7 of the Act; rather, it extends independently to all scheduled offences by virtue of section 12 of the Act.

8. At this juncture, it would be appropriate to refer to section 6 of the Anti-Terrorism Act, 1997 which defines “terrorism”. Section 6(1) provides that an action shall amount to terrorism if it falls within the acts enumerated in subsection (2) and such action is designed to coerce, intimidate, overawe the

Government or public, create fear or insecurity in society, or advance a religious, sectarian or ethnic cause. Section 6(2)(e) further provides that kidnapping for ransom or hostage-taking falls within the category of actions contemplated by the section.

Likewise, section 7(e) of the Anti-Terrorism Act, 1997 provides punishment for such acts in the following terms:

*“7. Punishment for acts of terrorism.—
Whoever commits an act of terrorism shall,—
(e) if the act of terrorism includes kidnapping
for ransom or hostage-taking, be punishable
with death or imprisonment for life.”*

9. The scheme of the Anti-Terrorism Act, 1997 clearly reflects that every offence triable by the Anti-Terrorism Court does not necessarily constitute an “act of terrorism” within the contemplation of section 6 of the Act. The Legislature, in its wisdom, intentionally incorporated certain heinous offences in the Third Schedule solely for the purpose of ensuring their expeditious trial through Special Courts established under the statute. Amongst such offences is kidnapping or abduction for ransom punishable under section 365-A, P.P.C.

Thus, a distinction has consciously been maintained by the Legislature between:--

- (i) offences which amount to “terrorism” within the meaning of section 6 and are punishable under section 7 of the Act; and*
- (ii) heinous scheduled offences which, though not constituting terrorism per se, are nonetheless triable by the Anti-Terrorism Court because of their inclusion in the Third Schedule to the Act.*

10. The preamble of the Anti-Terrorism Act, 1997 itself lends considerable support to the above interpretation as it unequivocally declares that the Act was promulgated not only for prevention of terrorism and sectarian violence but also for speedy trial of heinous offences. Kidnapping for ransom is undeniably one of the gravest offences affecting public safety, human liberty and societal order. It was precisely because of the alarming increase and heinous nature of such offence that the Legislature consciously brought section 365-A, P.P.C. within the exclusive jurisdiction of the Anti-Terrorism Court by incorporating the same in Entry No. 4 of the Third Schedule.

11. In the present case, although the prosecution may not have specifically alleged that the

petitioners acted with the design or purpose envisaged under section 6(1) of the Anti-Terrorism Act, 1997, yet the admitted position remains that the accused persons are facing trial under section 365-A, P.P.C., which is a scheduled offence within the meaning of section 2(n) of the Act. Once an offence falls within the Third Schedule, the Anti-Terrorism Court validly assumes exclusive jurisdiction under section 12 of the Act to proceed with the trial.

The absence of ingredients constituting “*terrorism*” may ultimately have bearing upon the question as to whether punishment under section 7 of the Anti-Terrorism Act, 1997 is attracted; however, such absence does not divest the Anti-Terrorism Court of its jurisdiction where the offence itself is specifically included in the Third Schedule to the Act.

12. The argument advanced by the learned counsel for the petitioners that in absence of the requisite mens rea contemplated under section 6 of the Act, the matter ought to be transferred to an ordinary criminal Court under section 23 of the Act, is legally misconceived. Section 23 becomes operative only where the Anti-Terrorism Court forms an opinion that

the offence is not triable by it. In the instant case, the offence under section 365-A, P.P.C. squarely falls within Entry No. 4 of the Third Schedule and is, therefore, exclusively triable by the Anti-Terrorism Court by virtue of sections 2(n), 12 and 13 of the Act. Consequently, no occasion arose for transfer of the case to a Court of ordinary jurisdiction.

13. It is by now a settled principle of law that an ordinary case of kidnapping for ransom committed for personal motive, monetary gain or private vendetta may not amount to “*terrorism*” unless accompanied by the requisite design or purpose envisaged under section 6(1) of the Anti-Terrorism Act, 1997. However, such offence nonetheless remains triable by the Anti-Terrorism Court because of its inclusion in the Third Schedule to the Act. In such like cases, the Anti-Terrorism Court may ultimately convict an accused under section 365-A, P.P.C. simpliciter and not under section 7 of the Anti-Terrorism Act, 1997 unless the prosecution independently establishes the necessary ingredients constituting an act of terrorism. In case of **“Nawab Siraj Ali and others Vs The STATE through A.G. Sindh”** reported as **2023 SCMR 16**, wherein hon’ble court has held that:-

10. Section 6 defines terrorist acts, section 7 provides punishment for such acts whereas section 8 prohibits acts intended or likely to stir up sectarian hatred mentioned in clauses (a) to (d) thereof. The word "sectarian" has been described as "pertaining to, devoted to, peculiar to, or one which promotes the interest of a religious sects, or sects, in a bigoted or prejudicial manner". However, the word "heinous offence" has not been described in the Act. In common parlance "heinous offence" means an offence which is serious, gruesome, brutal, sensational in character or shocking to public morality and which is punishable under laws of the land. A bare reading of the Anti-Terrorism Act reveals that an Anti-Terrorism Court has been conferred jurisdiction not only to try all those offences which attract the definition of 'terrorism' provided by the Act but also some other cases, which have been specified in Third Schedule of the Act involving heinous offences which do not fall in the said definition of terrorism. The sole purpose of trying such offences by the Anti-Terrorism Court is for speedy trial of such heinous offences irrespective of the fact that they do not fall within the ambit of 'terrorism'. This Court in the case of *Ghulam Hussain v. The State* (PLD 2020 SC 61) while elaborately discussing the scope and intent of the legislature behind the enactment of Anti-Terrorism Act, 1997, has held that "an act of 'terrorism' is not just a grave offence but it is

a class and species apart and this class or species has to be understood in its true and correct perception and perspective otherwise every serious offence may be found by one Judge or the other to involve terrorism depending upon a subjective assessment of the potential of the act to create some sense of fear or insecurity in some section of the society. Such an approach may not be wholesome as it may ultimately result in every case of a serious offence landing in a Special Court and thereby rendering the ordinary courts substantially redundant. It ought not to be lost sight of that the legislature's repeal of the Suppression of Terrorist Activities (Special Courts) Act, 1975, doing away with the Schedule of the Anti-Terrorism Act, 1997 at one stage and also its retraction from the 'effect' through the fresh definition of 'terrorism' cannot be without any significance or purpose. That drastic change of the definition manifestly indicated a change of meanings and of focus and such a change has to be given its proper effect. After all if the term 'terrorism' as defined today is still to be interpreted in the same manner as the erstwhile term 'terrorist act' then there was hardly any occasion or need for the legislature to amend the definition and to bring about any change in the existing law in that regard. The legacy and interpretations pertaining to the Suppression of Terrorist Activities (Special Courts) Act, 1975 and of the original

provisions of the Anti-Terrorism Act, 1997 have now to be shaken or shrugged off so as to correctly understand the definition of 'terrorism' introduced through the later Act and its amendments. This Court had itself declared in the case of Mumtaz Ali Khan Rajban and another v. Federation of Pakistan and others (PLD 2001 SC 169) that the subject matters of the Suppression of Terrorist Activities (Special Courts) Act, 1975 and the Anti-Terrorism Act, 1997 were "different" and their respective applicability was "governed by different criteria". The Court further held that the "distinction between cases of terrorism and cases of specified heinous offences not amounting to terrorism but triable by an Anti- Terrorism Court has already been recognized by this Court in the cases of Farooq Ahmed v. State and another (2020 SCMR 78), Amjad Ali and others v. The State (PLD 2017 SC 661) and Muhammad Bilal v. The State and others (2019 SCMR 1362). It has been clarified by this Court in those cases that such specified heinous offences are only to be tried by an Anti-Terrorism Court and that court can punish the person committing such specified heinous offences only for commission of those offences and not for committing terrorism because such offences do not constitute terrorism. For the purposes of further clarity on this issue it is explained for the benefit of all concerned that the cases of the offences specified in entry No. 4 of the Third Schedule

to the Anti-Terrorism Act, 1997 are cases of those heinous offences which do not per se constitute the offence of terrorism but such cases are to be tried by an Anti-Terrorism Court because of their inclusion in the Third Schedule. It is also clarified that in such cases of heinous offences mentioned in entry No. 4 of the said Schedule an Anti-Terrorism Court can pass a punishment for the said offence and not for committing the offence of terrorism. It may be pertinent to mention here that the offence of abduction or kidnapping for ransom under section 365-A, P.P.C. is included in entry No. 4 of the Third Schedule and kidnapping for ransom is also one of the actions specified in section 7(e) of the Anti-Terrorism Act, 1997. Abduction or kidnapping for ransom is a heinous offence but the scheme of the Anti-Terrorism Act, 1997 shows that an ordinary case of abduction or kidnapping for ransom under section 365-A, P.P.C. is merely triable by an Anti-Terrorism Court but if kidnapping for ransom is committed with the design or purpose mentioned in clauses (b) or (c) of subsection (1) of section 6 of the Anti-Terrorism Act, 1997 then such offence amounts to terrorism attracting section 7(e) of that Act. In the former case the convicted person is to be convicted and sentenced only for the offence under section 365-A, P.P.C. whereas in the latter case the convicted person is to be convicted both for the offence under section 365-A, P.P.C. as well as for the

offence under section 7(e) of the Anti-Terrorism Act, 1997.

Further reliance in this regard can safely be placed upon the cases titled: **“Rizwan Rasheed and another vs. The State” (2024 SCMR 1968), “Muhammad Yamin vs. The State” (2025 SCMR 1552), “Javed Iqbal vs. The State” (2024 SCMR 1437) and (PLD 2020 Supreme Court 61) “Ghulam Hussain and others Vs The State and others”.**

14. For what has been discussed above, this Court is of the considered opinion that the learned Anti-Terrorism Court, Hazara Division, Abbottabad has rightly assumed jurisdiction in the matter and has committed no illegality in dismissing the application filed by the petitioners under section 23 of the Anti-Terrorism Act, 1997. The offence under section 365-A, P.P.C. being a scheduled offence within the meaning of section 2(n) read with Entry No. 4 of the Third Schedule to the Anti-Terrorism Act, 1997 is exclusively triable by the Anti-Terrorism Court under sections 12 and 13 of the Act.

15. Consequently, the impugned order dated 13-04-2026 passed by the learned Anti-Terrorism Court, Hazara Division, Abbottabad suffers from no

illegality, irregularity or jurisdictional defect warranting interference by this Court in exercise of its constitutional jurisdiction. The instant as well as connected petitions being devoid of merit are accordingly dismissed.

Announced
19.05.2026

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